

25STLC07620 25STLC07620

County: los-angeles

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Case Number: 25STLC07620 Hearing Date: July 15, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

15, 2026

CASE NAME: Mayra

Cuellar v. Newhall School District

CASE NO.: 25STLC07620

MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendant

Newhall School District

RESPONDING PARTY(S): Plaintiff Mayra Cuellar

REQUESTED RELIEF:

1. An

order granting judgment on the pleadings in Defendant's favor for failing to state sufficient facts.

TENTATIVE RULING:

1. Motion

for judgment on the pleadings is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On October 3, 2025, Plaintiff Mayra Cuellar (Plaintiff) filed a verified complaint against Defendant Newhall School District (Defendant) with causes of action for: (1) violation of Gov. Code § 8314; and (2) Violation of Educ. Code § 7055.

According to the complaint, Defendant's employees repeatedly engaged in political campaigning on school grounds during instructional time—wearing political pins and shirts, distributing flyers and yard signs, and placing campaign materials in teacher mailboxes and staff areas—in violation of district policy and California law. She further alleges that district leadership not only failed to stop these activities but appeared to favor her opponent by permitting ongoing distribution of political materials and allowing use of the district logo in public endorsements. Plaintiff claims these actions contributed to her defeat in the November 2024 school board election and caused her financial losses, emotional distress, and other damages.

On December 10, 2025, Defendant filed an answer.

On January 26, 2026, Defendant filed the instant motion for judgment on the pleadings. On March 26, 2026, Plaintiff filed an opposition. On April 7, 2026, Defendant filed a reply.

On April 9, 2026, the court, on its own motion, reclassified the action from a limited civil jurisdiction action to an unlimited civil jurisdiction action. The motion for judgment on the pleadings was to be reset by the new department.

On May 1, 2026, the clerk served notice of reclassification, case reassignment, and vacating hearings.

On June 25, 2026, the court held a case management conference whereby the court rest the pending motion for judgment on the pleadings to July 15, 2026.

LEGAL STANDARD:

Judgment on the
Pleadings

A defendant may move for judgment on the pleadings if (i) the court does not have jurisdiction of the subject of the cause of action alleged in the complaint, or (ii) the complaint does not state facts sufficient to constitute a cause of action alleged in the complaint. (Cal. Code Civ. Proc. (CCP) § 438(b)(2), and subd. (c).) “The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer: We treat the pleadings as admitting all of the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law contained therein. We may also consider matters subject to judicial notice.” (Dunn v. County of Santa Barbara (2006) 135 Cal. App. 4th 1281, 1298.)

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP § 430.30(a); Blank v. Kirwan (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal. App. 4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Ibid.)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank v. Kirwan, supra, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at p. 318.)

Meet and Confer

As with demurrers and motions to strike, and subject to enumerated exceptions, the parties are required to meet and confer prior to filing a motion for judgment on the pleadings. (CCP § 439, § 430.41, § 435.)

Here, the parties exchanged meet and confer correspondence on December 12, 2025 and December 19, 2025. (Declaration of Charron Varona ¶ 4.) This requirement is therefore met.

ANALYSIS:

First Cause of

Action: Violation of Gov. Code § 8314

Among other arguments, Defendant contends this claim fails because there is no private right of action articulated in the statute.

Plaintiff argues that there is nothing in the statute that prohibits a private right of action. She adds that CCP § 526a authorizes such an action.^[1]

Defendant reiterates that there is no private right of action.

The words of a statute “are the most reliable indications of the Legislature’s intent.” (City of Lancaster v. Netflix, Inc. (2024) 99 Cal.App.5th 1093, 1105.) Courts “construe the words of a statute in context, and harmonize the various parts of an enactment by considering the provision at issue in the context of the statutory framework as a whole.” (Ibid.) If the language “supports more than one reasonable construction,” then courts look to extrinsic aids, such as legislative history. (Ibid.)

“A violation of a state statute does not necessarily give rise to a private cause of action.” (City of Lancaster v. Netflix, Inc., supra, 99 Cal.App.5th at p. 1105.) “[W]hether

a party has a right to sue depends on whether the Legislature has manifested an intent to create such a private cause of action under the statute.” (Id. at p. 1105-1106 [internal quotation omitted.])

The statute at issue here is Gov. Code § 8314. “It is unlawful for any elected state or local officer, including any state or local appointee, employee, or consultant, to use or permit others to use public resources for a campaign activity, or personal or other purposes which are not authorized by law.” (Gov. Code § 8314(a).)

“Any person who intentionally or negligently violates this section is liable for a civil penalty not to exceed one thousand dollars (\$1,000) for each day on which a violation occurs, plus three times the value of the unlawful use of public resources.” (Gov. Code § 8314(c)(1).) “The penalty shall be assessed and recovered in a civil action brought in the name of the people of the State of California by the Attorney General or by any district attorney or any city attorney of a city having a population in excess of 750,000.” (Ibid.)

After reviewing the statute, Plaintiff lacks standing to bring a private claim for violating this statute. First, the statute clearly on its face states that the attorney general, district or city attorney, may bring an action for penalties. (Gov. Code § 8314(c)(1).) The court is not persuaded by Plaintiff’s attempt to characterize this as a floor and not a ceiling. (City of Lancaster v. Netflix, Inc., supra, 99 Cal.App.5th at p. 1106 [discussing statutes with “clear, understandable, unmistakable terms” of Legislative intent to create private right of action, including terms “any person” or “[n]othing in this article shall limit the right . . . to sue directly” among others.]) The parties have not cited to the legislative history of an intent to create a private right of action, and the court has been unable to find such intent. Second, the authorities supplied for the proposition that taxpayers may pursue these actions do not so state. (See, e.g., DiQuisto v. County of Santa Clara (2010) 181 Cal.App.4th 236 [no discussion of standing].) The court is not convinced that interpreting the authorities as approving standing because they discussed matters resolved at trial is appropriate. Therefore, there are no authorities stating that Gov. Code § 8314 provides a private right of action.

Next, the court is not persuaded that CCP § 526a confers standing to pursue the Gov. Code § 8314 claim. First, it is a separate statutory scheme. Second, applying that statute as Plaintiff suggests would

make the explicit language limiting enforcement by the attorney general, district or city attorney superfluous which would apparently defeat the Legislature's intent. (See *Skidgel v. California Unemployment Ins. Appeals Bd.* (2021) 12 Cal.5th 1, 21.) Third, that statute applies to illegal expenditure of funds – which Plaintiff does not allege. (Compl. 10 [wearing pins and shirts on campus], 11 [distributing political flyers, yard signs, and pins on school property], 12 [wearing pins during instructional time], 13 [wearing pins], 14 [pins and materials relocated to teacher's lounge], 16 [wearing pins and shirts], 17 [materials placed in teacher mailboxes], and 26 [same].)

The court declines to develop the remaining arguments.

Accordingly, the court GRANTS Defendant's motion for judgment on the pleadings as to the first cause of action.

Second Cause of

Action: Violation of Educ. Code § 7055

Defendant contends this claim similarly fails because there is no private right of action.

Plaintiff's standing argument is the same as above.

Defendant's arguments on reply are the same.

Educ. Code § 7055 provides: "The governing body of each local agency may establish rules and regulations on the following: (a) Officers and employees engaging in political activity during working hours. (b) Political activities on the premises of the local agency."

The court adopts its analysis on statutory interpretation here. It appears, as above, there is no private right of action for Educ. Code § 7055.

Accordingly, the court GRANTS Defendant's motion for judgment on the pleadings as to the second cause of action.

Leave to Amend

Leave to amend should be liberally granted if there is a reasonable possibility an amendment could cure the defect. (County of Santa Clara v. Superior Court (2022) 77 Cal.App.5th 1018,1035.) The Plaintiff has the burden of demonstrating that leave to amend should be granted, and that the defects can be cured by amendment. ("Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349).

Here, Plaintiff did not request leave to amend or articulate how they could amend in their opposition. Nonetheless, the court will afford Plaintiff an opportunity to offer proof as to how they could amend to address the aforementioned defects.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for judgment on the pleadings is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 15, 2026 _____ Upinder S. Kalra

Judge of the Superior Court

[1]

Plaintiff also argues that their request for injunctive relief saves the claim. This argument lacks supporting authority. "[C]ontentions are waived when a party fails to support them with reasoned argument and citations to authority." (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)